

REPRESENTATION, CONFIDENTIALITY AND MARKETING AGREEMENT

Between:

(1) **[Full name of Afrimat / Nkomati / the selling company]** , a company incorporated under the laws of [country], RUT / Registration No. [●], with registered office at [address], represented by [Name and position], hereinafter "THE SELLER" or "AFRIMAT".

and (2) **Miner Global Connect SpA . / Miner Global Connect (MGC)** , a company incorporated under the laws of Chile, RUT 78.264.736-9, with registered office at Monjitas #513, office 11, Santiago, Chile, represented by **Robinson Sixto Godoy Cuchacovich** , hereinafter "THE REPRESENTATIVE" or "MGC".

Date: October 9 , 2025.

1. BACKGROUND

- 1.1. The SELLER is the producer and holder of rights to exploit and export mineral resources, including anthracite (coal), manganese, iron, rare earths, and others.
- 1.2. The REPRESENTATIVE acts as a commercial agent and international representative with a network of buyers and investors, and experience in structuring commercial and financial contracts.
- 1.3. The parties wish to collaborate to commercialize the production described in Annex A (Technical Package), under the terms and conditions agreed upon in this Agreement.

2. OBJECT

- 2.1. The SELLER appoints the REPRESENTATIVE to **search for, present, negotiate and close** international sales contracts for the product (s) detailed in Annex A, in favor of qualified buyers.
- 2.2. The REPRESENTATIVE undertakes to procure solvent buyers, to carry out financial and commercial verification (due due diligence) and assist in structuring the sales contract (SCO/FCO/SPA) and coordinating banking documentation (LC, SBLC, BCL, IMFPA, etc.).

3. SCOPE AND DURATION

3.1. Initial term of office: 6 months from the date of signing this Agreement, with automatic renewal for the same period, unless both parties mutually agree or, with 30 days ' notice, one of the parties decides not to continue with this contract.

3.2. Exclusivity: [check the box]

- Option A — **Exclusive:** The SELLER grants MGC **the exclusive right** to sell the mineral (s) described during the term of this mandate (it may not contract with other agents for the same material without written authorization).
- Option B — **Non-exclusive:** The SELLER may contract with other agents and brokers , without prejudice to MGC's obligations.
(Note: If exclusivity is chosen, the commission is usually lower; if not, the commission usually increases.)

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3.3. Renewal: The Agreement may be renewed for equal periods by signing an addendum , with 30 days' prior notice.

4. OBLIGATIONS OF THE REPRESENTATIVE (MGC)

4.1. Marketing: Introduce qualified and documented buyers (LOI, POF, BCL) and manage negotiations until the SPA is signed and the payment instrument (LC/SBLC) is confirmed.
4.2. Due diligence : Validate buyers' financial standing, background, and logistical capabilities.
4.4. Reports: Deliver weekly reports on activities, stakeholders, and status (weekly email with metrics). 4.5. Documentation preparation: Prepare SCO/FCO and assist in the preparation of SPA, IMFPA, and other necessary documents. 4.6. Confidentiality: Keep all technical, commercial, and pricing information safe; see clause 7. 4.7. Best practices: Do not introduce buyers that MGC knows are competing unfairly or have a conflict of interest. 4.8. Do not represent competitors: During the exclusivity period, MGC will not represent producers that compete directly in the same product and market (except with written consent).

5. SELLER'S OBLIGATIONS (AFRIMAT)

5.1. Deliver in a timely manner the complete and updated **Technical Package under NDA: constitution, mining titles, permits**, assays , ESG certifications, laboratory tests, port capacities , Incoterms, available stock, photography and video evidence with geotags.
5.2. Provide access for physical inspections and third-party audits (if required by buyers), coordination with logistics teams, and authorization for sampling by an independent laboratory.
5.3. Facilitate the necessary documentation for export (permits, licenses, certificates of origin, insurance, etc.). 5.4. Pay the **incorporation fee** according to clause 6.1 and cover travel expenses under the conditions of clause 8, if applicable.
5.5. Maintain controls to ensure that the material subject to the contract is free of encumbrances and that the sale does not contravene any legal or contractual restrictions.

6. FEES, FEES AND PAYMENT METHOD

6.1. **Incorporation Fee (Incorporation Fee / Retainer)**: USD **2,000** (two thousand dollars) payable upon signing this Agreement. Covers initial preparation: SCO, preliminary legal, due diligence , etc. Buyer due diligence and weekly reports. The **Success Fee is fully deducted** from the first commission payable. (Alternative: customize the amount in local currency.)
6.2. **Success Fee / Sales Commission**: 3% of the gross FOB value of each closed contract. 3% with exclusivity, 5 % without exclusivity. The commission will accrue and become payable **when the buyer has released the funds or the buyer's bank pays the amount to the seller under an LC/SBLC** .
6.3. **Commission Distribution**: If the transaction involves other intermediaries/parties, the commission will be distributed according to an IMFPA signed by the buyer, seller, and intermediaries. MGC will require a signed IMFPA before disclosing sensitive information to buyers.
6.4. **Commission Payment Method**: (a) Directly upon release of the LC/SBLC, via bank instruction; or (b) Payment to MGC's bank account via SWIFT transfer upon confirmation of payment by the buyer's issuing bank. The exact method will be established by each SPA and IMFPA.

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6.5. Expenses and Advances: Any extraordinary operating expenses (travel, inspections, certifications) will be covered by the SELLER or advanced by MGC and reimbursed or deducted from the first commission, as agreed in the appendix (see clause 8 on travel).

7. CONFIDENTIALITY AND RULES FOR THE USE OF INFORMATION (NDA)

7.1. The parties agree to maintain strict confidentiality of all documentation, data, prices, contracts, and contact information exchanged under this Agreement.
7.2. Information may only be disclosed to strictly necessary third parties (laboratories, banks, qualified buyers) with prior written consent or under an equivalent confidentiality agreement.
7.3. Breach of confidentiality will entitle the affected party to claim damages and immediate injunctions.
7.4. Duration of confidentiality: 5 years after termination of this Agreement.

8. VERIFICATION TRIPS / MINE VISIT (CONDITIONS)

8.1. **Trip Objective:** On-site stock verification, verification of photographic and video evidence, final signing of the SPA with the buyer in the presence of a representative, and supervision of inspection and sampling.

8.2. **Conditions for the trip to proceed:** The trip only proceeds when:

a) There is a qualified buyer with an IMFPA/LOI/POF and agreed payment terms; and b) There is a formal commitment from the buyer (BCL/ Proof of Purchase). of Funds) and the intention to issue LC/SBLC; and

c) The voyage date is mutually agreed upon based on logistical capacity and port slots.
8.3. **Voyage Cost:** Will be initially borne by the SELLER (AFRIMAT). Payment Alternative: The amount will be deducted from the first commission at the time of the first payment of the transaction.

8.4. **Reimbursement and Invoicing:** If MGC advances the amount, it will send invoices and receipts; the refund will be applied to the commission or will be reimbursed by bank transfer as agreed by the parties.

8.5. **If the voyage cannot be carried out due to causes attributable to the SELLER (e.g., local restrictions):** MGC may suspend the schedule and claim reasonable costs already incurred.

8.6. **Purposes of the Voyage:** The REPRESENTATIVE will arrive with a copy of the SPA and the technical package, and will be authorized to sign only if they have written authority from the SELLER; otherwise, signing on-site will require prior approval.

9. WARRANTIES AND RETURNS (FEE GUARANTEE)

9.1. **Onboarding Fee Guarantee:** If no serious offer (acceptable LOI + POF) leading to a contract with verified banking conditions is submitted or formalized within

six (6) months from the signing of the Agreement, the SELLER may request a refund of the onboarding fee according to the following scheme:

a) If MGC has not presented at least 1 number of verified buyers, 20% of the fee will be refunded within 30 days of the request;

b) If MGC has fulfilled its reporting and screening obligations (according to the report), but there is no closing due to causes beyond its control, the strategy will be reviewed as a whole.
9.2. **No partial refund if the SELLER terminates without cause:** If the SELLER terminates the contract without just cause before the minimum term, there will be no refund of the fee and MGC may claim reasonable costs.

9.3. **Limited Guarantee:** MGC does not guarantee the closing of the contract or the sales price, only diligence and market efforts.

10. REPRESENTATIONS AND WARRANTIES

10.1. **From the SELLER:** That they are the legitimate owner of the mineral and have valid permits for its export; that there are no liens that impede the sale; that the information and documents provided are accurate.

10.2. **From the REPRESENTATIVE:** That they are acting in good faith, are duly constituted, and do not represent interests that could conflict with the SELLER during the term of the agreed exclusivity agreement.

11. LIABILITY AND INDEMNIFICATION

11.1. Each party shall indemnify the other for direct damages caused by willful or negligent breach.

11.2. Limitation: Neither party shall be liable for indirect damages, loss of profits, or loss of opportunity except in the case of willful misconduct. 11.3. Mitigation obligations: The affected party shall take reasonable steps to mitigate damages.

12. EARLY TERMINATION

12.1. Either party may terminate the Agreement for an uncured material breach within 30 days of notice.

12.2. Termination for Convenience: Either party may terminate with [30] days' notice; if termination is by SELLER and before MGC has made initial efforts, compensation for work already performed may be negotiated.

12.3. Effects of Termination: Immediate payment of accrued commissions, return of confidential information, and settlement of outstanding expenses.

13. CONFLICT RESOLUTION AND APPLICABLE LEGISLATION

13.1. The parties agree to attempt to resolve disputes through direct negotiation and, if this fails, will submit the dispute to **arbitration** administered by the ICC or LCIA, with headquarters in a neutral city—e.g., London/Santiago, in Spanish/English. (Leave the option open to negotiation.)

13.2. Applicable law: [insert—e.g., English law/Chilean law/South African law.] (Recommendation: propose international arbitration and neutral law; define after agreement.)

14. MISCELLANEOUS

14.1. Force Majeure: Events beyond reasonable control (war, border closures, pandemics, strikes) temporarily exempt liability.

14.2. Assignment: Neither party may assign its rights without the other's written consent, except for assignment to an affiliated company. 14.3. Notifications: Notification addresses will be as indicated in the header; email notifications will be deemed received if there is no rejection within 48 hours. 14.4. Integrity: This document constitutes the entire agreement; any modifications in writing.

15. SIGNATURES

By Afrimat : _____

Name: [] — Position: [] — Date: []

By Miner Global Connect : _____

Name: Robinson Godoy Cuchacovich — CEO — Date: []